

CHAPTER 60

Housing Act, 1949

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SCHEDULES :

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An Act to amend the Housing Act, 1936; to promote the improvement of housing accommodation by authorising the making of contributions out of the Exchequer and of grants by local authorities; to amend the Housing (Financial and Miscellaneous Provisions) Act, 1946, with respect to the amounts of contributions payable thereunder out of the Exchequer, and certain other enactments relating to the making of contributions out of the Exchequer in respect of the provision of housing accommodation; to authorise the making out of the Exchequer of contributions in respect of the provision of hostels and of grants in respect of building experiments; to extend and amend other enactments relating to housing and domestic water supply; and for purposes connected with the matters aforesaid.

[30th July 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

AMENDMENTS OF THE HOUSING ACT, 1936

1. For the purpose of extending the provisions of the Housing Act, 1936 (hereafter in this Act referred to as "the principal Act"), so as to enable account to be taken of the housing conditions and housing needs of all members of the community, the provisions of the principal Act specified in the first column of the First Schedule to this Act shall have effect subject to the amendments specified in relation to those provisions respectively

Removal of references to the working classes from certain provisions of the Housing Act, 1936.

PART I
—*cont.*

in the second column of that Schedule, being amendments whereof the effect is to—

(a) remove the limitation confining—

(i) the duties of a local authority under section seventy-one of the principal Act with respect to the consideration of the needs of their district with respect to the provision of further housing accommodation and the preparation and submission to the Minister of Health (hereafter in this Act referred to as “the Minister”) of proposals for the provision of new houses; and

(ii) the power of a local authority under section seventy-two of the principal Act to provide housing accommodation,

to the provision of housing accommodation, and houses, for the working classes;

(b) extend to all dwellings the powers conferred on a local authority by Part II of the principal Act with respect to the repair, demolition and closing of insanitary dwellings occupied, or of a type suitable for occupation, by persons of the working classes;

(c) extend to all persons the provisions of Part III of the principal Act for securing the protection of persons of the working classes who will be displaced as a result of action taken under a resolution of a local authority declaring an area to be a clearance area or an improvement area;

(d) remove the limitation confining to houses for the working classes the class of houses for the purposes of the construction, improvement or purchase of which money may be lent by the Public Works Loan Commissioners under section ninety-two of the principal Act;

(e) remove the limitation confining the obligations with respect to re-housing imposed by section one hundred and thirty-seven of, and the Eleventh Schedule to, the principal Act on persons who acquire land under an Act or order to the re-housing of persons of the working-classes; and

(f) make adaptations of the principal Act consequential on the making of the amendments whereof the effect is specified in the foregoing paragraphs;

and section one hundred and thirty-six of the principal Act (which limits the standard of re-housing accommodation) shall cease to have effect.

Quashing of
certain
demolition
orders.

2. Where—

(a) a person who, within the meaning of the principal Act, is an owner of a house to which a demolition order under Part II of that Act applies (being an order which

became operative before the first day of January, nineteen hundred and forty-six) makes, within the period of twelve months from the commencement of this Act, a written request to the local authority by whom the order was made to exercise in relation to the house the powers conferred on them by this section ; and

- (b) the local authority are satisfied that, as a result of the execution of works since the time when the demolition order became operative, the house is fit for human habitation,

the local authority may apply to the county court within the jurisdiction of which the house is situate for an order quashing the demolition order, and on the application the judge may, if he is satisfied that the house is so fit, make an order quashing the demolition order.

3.—(1) Where, apart from this section, a local authority would be under a duty to make a demolition order under Part II of the principal Act with respect to—

Preservation
of certain
houses unfit
for human
habitation.

- (a) a house with respect to which a building preservation order under section twenty-nine of the Town and Country Planning Act, 1947, is in force ;
- (b) a house included in a list compiled or approved under section thirty of that Act by the Minister of Town and Country Planning ; or
- (c) a house, other than as aforesaid, in respect of which there is for the time being in force a notice given by that Minister to the local authority stating that the architectural or historic interest of the house is sufficient to render it inexpedient that the house should be demolished pending determination of the question whether or not it should be made the subject of such a building preservation order as aforesaid or included in such a list as aforesaid ;

they shall, instead, make a closing order prohibiting the use of the house for any purpose other than a purpose approved by them, and shall serve a copy of the order upon every person upon whom they would be required by subsection (1) of section eleven of the principal Act to serve a notice issued by them under that subsection.

(2) Where, in the case of a house with respect to which a demolition order made under Part II of the principal Act by a local authority applies (whether or not that order has become operative), either—

- (a) a building preservation order under the said section twenty-nine takes effect with respect to the house ; or

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—cont.

- (b) the house is included in such a list as aforesaid ; or
- (c) the Minister of Town and Country Planning gives to the local authority such a notice as aforesaid ;

the local authority shall determine the demolition order and make a closing order prohibiting the use of the house for any purpose other than a purpose approved by them, and shall serve notice that the demolition order has been determined and a copy of the closing order upon every such person as aforesaid.

(3) The approval of a local authority under this section shall not be unreasonably withheld, and a local authority by whom a closing order is made under this section shall determine the order on being satisfied that the house to which it relates has been rendered fit for human habitation.

(4) The following provisions of the principal Act, namely,—

- (a) section fourteen (which imposes a penalty for using premises in contravention of a closing order made under Part II of that Act) ;
- (b) section fifteen (which relates to appeals to the county court against notices, demands and orders under that Part of that Act) ;
- (c) section eighteen (which empowers local authorities to pay allowances to persons displaced from premises to which closing orders so made apply) ; and
- (d) section nineteen (which contains provisions for the protection of owners of houses),

shall have effect in relation to a closing order made under this section, to a refusal to determine such an order, to a withholding of approval in relation to the use for any purpose of a house to which such an order applies, and to a house to which such an order applies as they have effect in relation to a closing order under Part II of that Act, to a refusal to determine such an order, to a withholding of approval in relation to the use for any purpose of a house to which such an order applies and to a house to which such an order applies, as if references therein to a closing order included references to a closing order made under this section and references to Part II of that Act included references to this section ; and section one hundred and sixty of that Act (which empowers the county court to determine or vary a lease of premises in respect of which a demolition order has become operative) shall have effect in relation to a closing order made under this section which has become operative and to a house to which such an order applies as it has effect in relation to a demolition order which has become operative and to a house to which such an order applies, as if the reference to a demolition order included a reference to a closing order made under this section.

4.—(1) A local authority for the purposes of Part V of the principal Act or a county council may, subject to such conditions as may be approved by the Minister, advance money, subject to the provisions hereinafter contained, to any persons for the purpose of—

- (a) acquiring houses ;
- (b) constructing houses ;
- (c) converting into houses buildings which have been acquired by those persons or acquiring buildings and converting them into houses ; or
- (d) altering, enlarging, repairing or improving houses ;

whether the houses or buildings are within or without the district of the authority or council.

(2) Before advancing money under this section for the purpose specified in paragraph (a) of the foregoing subsection the local authority or county council shall satisfy themselves that the house or houses to be acquired is or are, or will be made, in all respects fit for human habitation, and before so advancing money for any of the purposes specified in paragraphs (b) to (d) of that subsection the local authority or county council shall satisfy themselves that the house or houses to be constructed, altered, enlarged, repaired or improved or into which the building or buildings is or are to be converted, as the case may be, will, when the construction, alteration, enlargement, repair, improvement or conversion has been completed, be in all respects so fit.

(3) The following provisions shall have effect with respect to an advance under this section:—

- (a) the advance, together with interest thereon, shall be secured by a mortgage of lands the subject of the carrying out of the purpose for which the advance is made;
- (b) the amount of the principal of the advance shall not exceed, in the case of a house or houses to be acquired, ninety per cent. of the value of the mortgaged security, and, in any other case, ninety per cent. of the value which it is estimated the mortgaged security will bear when the construction, conversion, alteration, enlargement, repair or improvement has been carried out ;
- (c) the mortgage deed may provide for repayment being made either by instalments of principal or by an annuity of principal and interest combined, so, however, that in the event of any of the conditions subject to which the advance is made not being complied with, the balance for the time being unpaid shall become repayable on demand by the local authority or county council and that the said balance may, in any event,

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—cont.

Power of local authorities to make advances for purpose of increasing housing accommodation.

PART I
—cont.

be repaid on one of the usual quarter days by the person for the time being entitled to the equity of redemption after one month's written notice of intention to repay has been given to the local authority or county council;

- (d) where the advance is for any of the purposes specified in paragraphs (b) to (d) of subsection (1) of this section it may be made by instalments from time to time as the works of construction, conversion, alteration, enlargement, repair or improvement progress;
- (e) the advance shall not be made except after a valuation duly made on behalf of the local authority or county council; and
- (f) no advance shall be made on mortgage of lands unless the estate therein proposed to be mortgaged is either an estate in fee simple absolute in possession or an estate for a term of years absolute whereof a period of not less than ten years in excess of the period fixed for the repayment of the advance remains unexpired on the date on which the mortgage is executed.

(4) An advance under this section shall not be made if the estimated value of the fee simple in possession free from incumbrances of the house in respect of which assistance is to be given exceeds five thousand pounds, but such an advance may be made in addition to assistance given by the local authority in respect of the same house under any other Act or any other provision of this Act.

In the case of an advance for the construction of one or more structurally separate and self-contained flats, the estimated value for the purposes of the foregoing limitation shall, as respects any flat, be the estimated value of the flat.

(5) Section ninety of the principal Act shall cease to have effect and paragraphs (a) and (c) of subsection (1) of section ninety-one of that Act shall cease to have effect except as respects undertakings thereunder given before the commencement of this Act.

Power of local
authorities to
guarantee
repayment of
advances by
building
societies.

5.—(1) A local authority for the purposes of Part V of the principal Act or a county council may, in accordance with proposals in that behalf made by them and approved by the Minister, guarantee the repayment to a society incorporated under the Building Societies Acts, 1874 to 1939, or the Industrial and Provident Societies Acts, 1893 to 1928, of any advances, with interest thereon, made by the society to any of its members for the purpose of enabling them to build or acquire houses, whether within or without the district of the authority or council.

(2) Where, upon the submission to the Minister by a local authority or county council of proposals under this section, the

Minister is satisfied that the proposed guarantee extends only to the principal of, and interest on, the amount by which the sum to be advanced by the society in question exceeds the sum which would normally be advanced by it without the guarantee of the local authority or county council, and that the liability under the guarantee of the local authority or county council cannot be greater than two-thirds of that principal and interest, the Minister, if he approves the proposals, may, with the consent of the Treasury, undertake to reimburse to the local authority or county council out of moneys provided by Parliament not more than one-half of any loss sustained by them under the terms of the guarantee.

(3) Subsection (4) of the last foregoing section shall apply to guarantees given under this section with the substitution for references to advances made of references to guarantees given.

(4) In paragraph 3 of Part I of the Schedule to the Building Societies Act, 1939 (which paragraph specifies, as one of the classes of additional security which may be taken into account in determining the amount of advances by building societies to their members, a guarantee given by a local authority or a county council under paragraph (b) of subsection (1) of section ninety-one of the Housing Act, 1936), after the words "the Housing Act, 1936," there shall be inserted the words "or section five of the Housing Act, 1949".

(5) Paragraph (b) of subsection (1) of section ninety-one of the principal Act and section one hundred and ten thereof shall cease to have effect except as respects undertakings thereunder given before the commencement of this Act.

6. A local authority for the purposes of Part V of the principal Act may pay to any person displaced from a house or other building which has been purchased by them under that Part of that Act such reasonable allowance as they think fit towards his expenses in removing, and to any person carrying on any trade or business in any such house or other building they may pay also such reasonable allowance as they think fit towards the loss which, in their opinion, he will sustain by reason of the disturbance of his trade or business consequent on his having to quit the house or building, and in estimating that loss they shall have regard to the period for which the premises occupied by him might reasonably have been expected to be available for the purpose of his trade or business and the availability of other premises suitable for that purpose.

Power of local authorities to make allowances to certain persons displaced.

7.—(1) The power of a local authority under Part V of the principal Act to provide housing accommodation shall include power to provide, in connection with the provision of such accommodation for any persons, such facilities for obtaining meals and refreshments and such facilities for doing laundry and such laundry services as accord with the needs of those persons.

Power of local authorities to provide board and laundry facilities.

PART I
—cont.

(2) A local authority may make such reasonable charges for meals and refreshments provided by the authority by virtue of this section and to persons availing themselves of facilities for doing laundry or laundry services so provided as the authority may determine.

(3) This section shall be deemed always to have had effect, and the reference in this section to Part V of the principal Act shall be construed as including a reference to the corresponding provisions of any Act repealed by that Act or by the Housing Act, 1925.

(4) A Justices' licence granted under the Licensing Acts, 1910 to 1934, for the sale of intoxicating liquor in connection with the provision of facilities for obtaining meals and refreshments under this section shall only authorise the sale of such liquor for consumption with a meal, and a local authority shall in carrying on any activities under this section be subject to all enactments and rules of law relating thereto, including the enactments relating to the sale of intoxicating liquor, in like manner as other persons carrying on the like activities.

Power of local authorities to sell furniture to persons housed by, or by arrangement with, them.

8.—(1) Without prejudice to their powers under subsection (2) of section seventy-two of the principal Act (which, amongst other things, empowers a local authority to fit out, furnish and supply a house erected, converted or acquired by them with all requisite furniture, fittings and conveniences), a local authority for the purposes of Part V of that Act shall have power and be deemed always to have had power to sell, or supply under a hire-purchase agreement, furniture to the occupants of houses provided by the authority or by a housing association under arrangements made with the authority, and, for that purpose, to buy furniture.

(2) In this section the expression "hire-purchase agreement" has the same meaning as in the Hire Purchase Act, 1938.

Acquisition of land for improvement of housing accommodation.

9.—(1) The purposes for which land may be acquired under Part V of the principal Act by a local authority shall include—

- (a) the carrying out thereon by them of works for the purpose of, or connected with, the alteration, enlargement, repair or improvement of an adjoining house;
- (b) the sale or lease of the land under the powers conferred by this section with a view to the carrying out on the land by a person other than the local authority of such works as aforesaid.

(2) Where a local authority have acquired any land for the purposes of paragraph (b) of the foregoing subsection, they may, with the consent of the Minister, sell or lease the land to any person for the purpose and under the condition that that person will carry out thereon, in accordance with plans approved by the authority, the works with a view to the carrying out of which the land was acquired, and subsections (3) and (5) of

section seventy-nine of the principal Act (which relate to the price at which land may be sold and the rent at which it may be leased under that section and to the exclusion of provisions of the Lands Clauses Consolidation Act, 1845, relating to the sale of superfluous land) shall apply to the sale and leasing of land under this subsection as they apply to the sale and leasing of land under that section.

PART I
—cont.

(3) In this section the expression "sale" includes a sale in consideration of a chief rent, rentcharge or other similar periodical payment, and the expression "sell" has a corresponding meaning.

10. Paragraph (a) of subsection (1) of section six of the principal Act (which included amongst the purposes for which byelaws with respect to working-class houses may be made under that subsection the fixing of the number of persons who may occupy such a house and the separation of the sexes therein, and which ceased to have effect as from the appointed day within the meaning of Part IV of that Act) shall again have effect, but the operation of byelaws made for the purposes specified in that paragraph shall be limited to houses let in lodgings or occupied by members of more than one family.

Revival of power to make byelaws as to number of persons permitted to occupy working-class houses.

11. The power of the county court under section one hundred and sixty-three of the principal Act to vary the terms of a lease or other instrument imposing a prohibition or restriction on the conversion of a house into two or more tenements shall be exercisable in any case where planning permission has been granted under Part III of the Town and Country Planning Act, 1947, for the use as two or more separate dwelling-houses of a building previously used as a single dwelling-house in like manner as such power is exercisable on proof to the satisfaction of the court that, owing to changes in the character of the neighbourhood, a house cannot readily be let as a single tenement but could readily be let if converted into two or more tenements.

Extension of power of county court to vary terms of leases, &c.

12.—(1) Subsection (2) of section eighty-one of the principal Act (which provides that where housing operations under Part V of that Act have been carried out by a local authority outside their own area, and for the purposes of the operations public streets or roads have been constructed and completed by that local authority, the liability to maintain the streets or roads shall vest in the council of the borough or district in which the operations were carried out unless that council are, or on appeal the Minister is, satisfied that the streets or roads have not been properly constructed in accordance with the plans and specifications approved by the Minister) shall not apply to the liability to maintain a public street or road in a rural district constructed, by a local authority other than the council of the district, for the purposes of housing operations under the said

Liability to maintain certain streets and roads in rural districts.

PART I
—*cont.*

Part V, and completed by them after the commencement of this Act, but that liability shall, unless the council of the county are, or on appeal the Minister is, satisfied that the street or road has not been properly constructed in accordance with the plans and specifications approved by the Minister, vest in the council of the county which comprises the rural district.

(2) Any liability to maintain a street or road which, at the commencement of this Act, is vested in the council of a rural district by virtue of the said subsection (2) or the corresponding provision of an enactment repealed by the principal Act shall be transferred to and vested in the council of the county which comprises the rural district unless that council are, or on appeal the Minister is, satisfied that the street or road was not properly constructed in accordance with the plans and specifications approved by the Minister or that it has not been maintained in a proper state of repair.

(3) Where, in the case of a street or road the liability to maintain which would, under the last foregoing subsection, have been transferred to the council of a county had the council or the Minister not been satisfied as mentioned in that subsection, that council are, or on appeal the Minister is, at any time after the liability would have been so transferred, satisfied that the street or road has been brought into a proper state of construction and repair, the liability to maintain it shall be transferred to and vested in that council.

(4) Where, at the commencement of this Act, an appeal is pending under subsection (2) of the said section eighty-one with respect to a street or road in a rural district, subsection (1) of this section shall apply to the street or road as if it had been completed after the commencement of this Act.

(5) In this section the expression "street" has the same meaning as it has for the purposes of the principal Act.

Amendments
as to local
authority for
Part V of the
principal Act
in London
(other than
the City).

13. For subsections (4) and (5) of section one hundred and three of the principal Act (which respectively contain provisions for determining, as respects the administrative county of London other than the City of London, the question whether the London County Council or the metropolitan borough council are to be the local authority for the purposes of Part V of that Act except as regards the provision of houses outside the administrative county of London and the carrying out of reviews of housing conditions and submission to the Minister of proposals for the provision of new houses, and provisions relating to the transfer of powers), there shall be substituted the following subsections:—

"(4) As respects a metropolitan borough, the council of the borough shall be the local authority for the purposes of this Part of this Act save as regards the provision of any

houses outside the borough and the carrying out of such reviews of housing accommodation and the submission to the Minister of such proposals for the provision of new houses as are required by this Part of this Act.

(5) Without prejudice to the powers conferred on a metropolitan borough council by this Act, the London County Council shall be a local authority for the purposes of this Part of this Act as respects any part of the administrative county of London, other than the City of London, for all the purposes of this Part of this Act other than those for which it is the local authority to the exclusion of the metropolitan borough council:

Provided that the London County Council shall not develop land in a metropolitan borough for the purpose only of meeting the needs of the borough without the consent of the council thereof.

(6) If it appears to the Minister to be expedient that the needs of a metropolitan borough with respect to the provision of housing accommodation should be satisfied by the provision by the council of that borough of such accommodation outside the administrative county of London or within another metropolitan borough, he may by order provide for the transfer to that council, to such extent as appears to him to be requisite for that purpose, of any powers which, by virtue of subsection (2) or (5) of this section, are powers of the London County Council ”.

14.—(1) Notwithstanding anything in section one hundred and seventeen of the principal Act, all expenses incurred (whether before or after the commencement of this Act) by the London County Council in the execution of the principal Act, other than expenses which are directed by the following subsection to be defrayed as expenses incurred for special county purposes, shall be defrayed as expenses incurred for general county purposes.

Housing
expenses of
London
County
Council.

(2) The following expenses incurred (whether before or after the commencement of this Act) by the London County Council shall be defrayed as expenses incurred for special county purposes, namely—

(a) expenses incurred by way of making contributions under paragraph 1, 2 or 3 of the Eighth Schedule to the principal Act ; and

(b) all other expenses incurred in the execution of that Act which are attributable to the exercise by the Council of their powers under the Housing of the Working Classes Act, 1890, not being expenses so incurred in respect of houses or other buildings provided or land acquired or appropriated under the last-mentioned Act after the sixth day of February, nineteen hundred and nineteen.

PART II

FINANCIAL ASSISTANCE TOWARDS IMPROVEMENT OF HOUSING
ACCOMMODATION*Exchequer Contributions for Improvement of Housing
Accommodation by Local Authorities*

Exchequer
contributions
towards losses
incurred by
local
authorities in
improving
housing
accommoda-
tion.

15.—(1) With a view to encouraging the improvement of housing accommodation by local authorities, the Minister may approve proposals (hereafter in this Act referred to as “improvement proposals”) submitted to him by a local authority for—

(a) the provision of dwellings by the authority by means of the conversion of houses or other buildings ;

(b) the improvement of dwellings by the authority ;
and may, subject to and in accordance with the provisions of this Part of this Act, make, out of moneys provided by Parliament, a contribution towards the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals.

(2) Before approving any improvement proposals the Minister shall satisfy himself as to the following requirements, that is to say,—

(a) that, as respects dwellings to be provided in accordance with the proposals, the dwellings will provide satisfactory housing accommodation for a period of not less than thirty years from the completion of the works necessary for the conversion of the buildings in question, and, as respects dwellings to be improved in accordance with the proposals, the dwellings as so improved will provide such accommodation for a period of not less than thirty years from the completion of the improvements ; and

(b) that all such dwellings as aforesaid will conform with such requirements with respect to their construction and physical condition and the provision of services and amenities as may be specified for the purposes of this section by the Minister :

Provided that if, in relation to all or any of the said dwellings, the Minister is not satisfied that the dwellings or dwelling will conform with a particular requirement specified under paragraph (b) of this subsection, he may, notwithstanding that fact, approve the proposals if he is satisfied that, in all the circumstances of the case, conformity with that requirement would be impracticable.

Nature, and
amounts, of
contributions.

16. A contribution under the last foregoing section towards the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals shall

be a sum equal to three-quarters of that loss, payable annually for the period of twenty financial years beginning with the year in which the carrying out of the proposals is completed.

PART II
—cont.

17.—(1) For the purposes of this Part of this Act, the amount Determination of the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals shall be determined by the Minister.

(2) For the purpose of a determination under the foregoing subsection regard shall be had to expense proposed to be incurred by the local authority in acquiring interests in land for the purpose of giving effect to the proposals, the estimated cost of executing works of conversion or improvement in accordance with the proposals, the annual income which, if effect were not given to the proposals, might reasonably be expected to accrue to the authority from interests owned by them in buildings proposed to be converted or dwellings proposed to be improved, and the annual income which may reasonably be expected to accrue to the authority from the dwellings provided or improved as a result of giving effect to the proposals, and to any other matter which appears to the Minister to be relevant.

(3) It shall be the duty of a local authority by whom improvement proposals are submitted to the Minister to furnish to him such estimates and such particulars with respect to the proposals as he may require for the purposes of this section.

18.—(1) A local authority shall, in respect of approved improvement proposals carried out by them, make out of the general rate fund, for each financial year for which a sum is payable by the Minister by way of contribution under section fifteen of this Act towards the annual loss likely to be incurred by the authority as a result of giving effect to the proposals, a contribution of an amount equal to the difference between the amount of that loss as determined by the Minister and the sum so payable.

Local authorities' contributions.

(2) In its application to the London County Council this section shall have effect with the substitution, for the reference to the general rate fund, of a reference to the county fund.

Exchequer Contributions for Improvement of Housing Accommodation by Development Corporations

19. The Minister may approve any proposals for the provision or improvement of dwellings submitted to him by a development corporation which he would have power to approve under the foregoing provisions of this Part of this Act if they were submitted to him by a local authority, and the like contribution shall be made by the Minister to a development corporation out of moneys provided by Parliament towards the

Exchequer contributions towards losses incurred by development corporations in improving housing accommodation.

PART II
—cont.

annual loss likely to be incurred by the corporation as a result of giving effect to proposals approved under this section as would have been made by him had the proposals been submitted by a local authority.

*Grants by Local Authorities for Improvement of Housing
Accommodation by Persons other than Local Authorities*

Grants to
persons other
than local
authorities for
improvement
of housing
accommoda-
tion.

20.—(1) Subject to the provisions of this Part of this Act, a local authority may give assistance in respect of—

- (a) the provision of dwellings, by a person other than a local authority or county council, by means of the conversion of houses or other buildings;
- (b) the improvement of dwellings by such a person;

by way of making a grant (hereafter in this Part of this Act referred to as an "improvement grant") in respect of expenses incurred for the purposes of the execution of the works of conversion or improvement (hereafter in this Part of this Act referred to as "improvement works") if, before the improvement works are begun, an application in that behalf is made to the authority by that person (hereafter in this Part of this Act referred to as "the applicant") and approved by them.

(2) An application under this section for an improvement grant must contain full particulars of the improvement works proposed to be carried out and of the land on which those works are proposed to be carried out, together with plans and specifications of the works and an estimate of the expenses to be incurred for the purposes of the execution thereof, and, where the application relates to the provision or improvement of more than one dwelling, the said estimate must specify the proportion of the estimated expenses that is attributable to each dwelling proposed to be provided or improved.

(3) Before approving an application under this section for an improvement grant the local authority shall satisfy themselves as to the following requirements, that is to say,—

- (a) that, as respects dwellings to be provided by means of the improvement works, the dwellings will provide satisfactory housing accommodation for a period of not less than thirty years from the completion of the works, and, as respects dwellings to be improved by means of the improvement works, the dwellings as so improved will provide such accommodation for a period of not less than thirty years from the completion of the works;
- (b) that all such dwellings as aforesaid will conform with such requirements with respect to their construction and physical condition and the provision of services and amenities as may be specified for the purposes of this section by the Minister;

- (c) that the applicant has, in every parcel of land on which the improvement works are proposed to be carried out (other than land proposed to be sold or leased to him under section nine of this Act), an interest constituting either an estate in fee simple absolute in possession or a term of years, absolute whereof a period of not less than thirty years remains unexpired at the date of the application:

Provided that if, in relation to all or any of the said dwellings, the local authority are not satisfied that the dwellings or dwelling will conform with a particular requirement specified under paragraph (b) of this subsection, they may, notwithstanding that fact, with the consent of the Minister approve the application if they are satisfied that, in all the circumstances of the case, conformity with that requirement would be impracticable.

(4) No application under this section for an improvement grant shall be entertained unless—

(a) in a case where the application relates only to the provision or improvement of a single dwelling, the amount of the expenses estimated to be incurred for the purposes of the execution of the improvement works; or

(b) in any other case, the proportion of those expenses attributable to each dwelling proposed to be provided or improved;

is neither less than one hundred pounds or such other amount as may for the time being be prescribed nor more than six hundred pounds or such other amount as may for the time being be prescribed:

Provided that where, in a case falling within paragraph (a) of this subsection, the amount of the expenses estimated to be incurred exceeds six hundred pounds or other the maximum amount for the time being prescribed under this subsection or, in a case falling within paragraph (b) of this subsection, all or any of the proportions of those expenses attributable to the several dwellings exceeds that amount, the local authority may, with the consent of the Minister, entertain the application if they are satisfied that, in all the circumstances of the case, there is good reason so to do.

(5) Where a local authority approve an application under this section they shall notify the applicant of the amount approved by them as being the amount of the expenses which, in their opinion, are properly ascribable to the execution of the improvement works and, where the application relates to the provision or improvement of more than one dwelling, of the proportion of that amount approved by them as being attributable to each dwelling proposed to be provided or improved.

PART II
—cont.

The said amount is hereafter in this Part of this Act referred to, in relation to improvement works, as the "approved expense" of executing the works, and the proportion of that amount approved under this subsection as being attributable to a dwelling is so referred to, in relation to that dwelling, as the "approved proportion" of the approved expense.

Amounts, and
payment, of
improvement
grants.

21.—(1) The amount which may be paid by way of an improvement grant in respect of expenses incurred for the purposes of the execution of any improvement works shall be such fraction of the approved expense of executing those works, not exceeding one-half thereof, as may be determined by the local authority when they approve the application for the grant:

Provided that, in the case of an improvement grant to be made in pursuance of an application which could not have been entertained by the local authority but for the proviso to subsection (4) of the last foregoing section, the amount thereof may be such fraction of the approved expense of executing the works, in excess of one-half thereof, as may, with the consent of the Minister, be determined as aforesaid.

(2) An improvement grant in respect of expenses incurred for the purposes of the execution of improvement works may be paid either after completion of the works or partly in instalments from time to time as the works progress and as to the balance after the completion of the works:

Provided that where the grant is to be paid partly in instalments, the aggregate of the instalments paid shall not at any time before the completion of the works exceed one-half of the aggregate cost of the works executed up to that time.

(3) The payment of an improvement grant or of an instalment or the balance thereof shall be conditional upon the works or, as the case may be, the part of the works which the applicant considers will entitle him to payment of the instalment or balance, being executed to the satisfaction of the local authority.

Duty of local
authority to
fix rents.

22. It shall be the duty of a local authority, at the time at which they approve an application under this Part of this Act for an improvement grant in respect of expenses incurred for the purposes of the execution of any improvement works, to fix, for the purposes of this Part of this Act, with respect to—

(a) every dwelling to be provided by means of the works; and

(b) every dwelling to be improved by means of the works, being a dwelling which the authority are satisfied has not been let as a dwelling at any time during the period of five years immediately preceding the date of the application;

the maximum rent that may be paid in respect of the dwelling.

23.—(1) In the case of a dwelling in respect of the provision or improvement of which assistance has been given under section twenty of this Act, the following conditions shall, subject to the provisions of this Part of this Act, be observed with respect to the dwelling for a period of twenty years beginning with the day on which it first becomes fit for occupation after the completion of the improvement works, and shall, so long as they are required to be so observed, be deemed to be part of the terms of any lease, agreement for a lease or tenancy of the dwelling, and shall be enforceable accordingly:—

PART II
—cont.

Conditions to
be observed
with respect
to dwellings.

- (a) the dwelling shall not be used for purposes other than those of a private dwelling-house except with the consent in writing of the local authority and then only for such further purposes and to such extent as may be mentioned in that consent;
- (b) the dwelling shall, at all times at which it is not occupied by the applicant for the improvement grant or a member of his family or a person to whom the interest of the applicant in the dwelling has been devised by him, be let or be kept available for letting at a rent not exceeding the maximum rent that, by virtue of the next following paragraph, may be paid by an occupier of the dwelling;
- (c) the rent payable by the occupier of the dwelling shall not exceed—
 - (i) in a case where a maximum rent with respect to the dwelling has been fixed under the last foregoing section, the amount thereof; or
 - (ii) in any other case, an amount equal to the aggregate of the rent at which the dwelling was last let before the improvement works were begun and a sum calculated at a rate per annum not exceeding six per cent. of the fraction of the approved expense of executing the improvement works or the approved proportion of that expense (according as to whether the works were for the improvement of a single dwelling or of two or more dwellings) that fell to be borne by the applicant for the improvement grant;and no fine, premium or other like sum shall be taken in addition to the rent;
- (d) all reasonable steps shall be taken to secure the maintenance of the dwelling so as to be in all respects fit for human habitation;
- (e) the owner of the dwelling shall, on being required so to do by the local authority, certify that the conditions specified in the foregoing paragraphs are being

PART II
—cont.

observed with respect to the dwelling, and any tenant of the dwelling shall, on being so required in writing by the owner, furnish to him such information as he may reasonably require for the purpose of enabling him to comply with this condition ;

- (f) in the event of a tenant assigning, or otherwise parting with the possession of, the dwelling, it shall not be lawful for any person in consideration thereof to make any payment other than rent or for the tenant to receive, directly or indirectly, any such payment.

(2) In the event of a breach of any of the conditions specified in the foregoing subsection at a time when they are required to be observed with respect to a dwelling, the following provisions shall have effect :—

- (a) where the improvement works by means of which the dwelling was provided or improved were works only for the provision or improvement of that dwelling, the appropriate proportion of any sums paid by the local authority by way of improvement grant in respect of expenses incurred for the purposes of the execution of those works, together, in the case of each such sum, with compound interest on that proportion thereof as from the date of payment of the sum, calculated at the prescribed rate and with yearly rests, shall, on being demanded by the local authority, forthwith become payable to them by the owner for the time being of the dwelling ;
- (b) in any other case, the appropriate proportion of a part of any such sums as aforesaid bearing to the whole thereof the same proportion that the approved proportion of the approved expense of executing the improvement works bears to the whole of the approved expense of executing those works, together, in the case of each part of a sum, with compound interest on the appropriate proportion thereof as from the date of payment of the sum, calculated at the prescribed rate and with yearly rests, shall become payable as aforesaid :

Provided that—

- (i) if the local authority are satisfied that the breach is capable of being remedied, they may, with the consent of the Minister, and subject to such conditions (if any) as he may approve, direct that the operation of the foregoing provisions of this subsection shall, in relation to the breach, be suspended for such period as appears to them to be necessary for enabling the

breach to be remedied and, if the breach is remedied within that period, may direct that the said provisions shall not have effect in relation to the breach; and

- (ii) if the local authority are satisfied that the breach, although not capable of being remedied, was not due to the act, default or connivance of the owner of the dwelling, they may, with the like consent and subject to such conditions as aforesaid, direct that the said provisions shall not have effect in relation to the breach.

In this subsection the expression “the appropriate proportion”, in relation to a sum or part of a sum, means a part thereof proportionate to the extent to which the period during which conditions are required by subsection (1) of this section to be observed with respect to the dwelling remains unexpired at the date of the occurrence of the breach of conditions.

(3) Upon satisfaction of a liability of an owner of a dwelling to make a payment under the last foregoing subsection to a local authority, observance with respect to the dwelling of the conditions specified in subsection (1) of this section shall cease to be requisite.

(4) Notwithstanding anything to the contrary in any enactment or rule of law relating to the jurisdiction of county courts, the county court for the district wherein any such dwelling as is mentioned in subsection (1) of this section is wholly or partly situate may, on the application of the local authority,—

- (a) whether or not any other relief is claimed, grant an injunction restraining a breach or apprehended breach, in relation to the dwelling, of any of the conditions specified in that subsection other than the condition specified in paragraph (e) thereof;

- (b) order the payment to the authority of any sum which, by virtue of subsection (2) of this section, is payable to them by reason of a breach of any of the conditions required by the said subsection (1) to be observed with respect to the dwelling.

(5) Conditions required by this section to be observed with respect to a dwelling shall be registered in the register of local land charges by the proper officer of the local authority in such manner as may be specified by rules made for the purposes of this section under subsection (6) of section fifteen of the Land Charges Act, 1925.

24.—(1) The owner of a dwelling in respect of the provision or improvement of which assistance has been given under section twenty of this Act or a mortgagee of the interest of the owner in the dwelling, being a mortgagee entitled to exercise his power

Repayment of
improvement
grants.

PART II
—cont.

of sale, may, if the local authority so agree, at any time during the period during which the conditions specified in subsection (1) of the last foregoing section are required by that subsection to be observed with respect to the dwelling, pay to the local authority the like amount as would become payable to them under subsection (2) of that section in the event of a breach at that time of any of those conditions, and, on the making of the payment, observance with respect to the dwelling of those conditions shall cease to be requisite.

(2) A sum paid under the foregoing subsection by a mortgagee shall be treated as part of the sum secured by the mortgage and may be discharged accordingly.

(3) The purposes authorised for the application of capital money by section seventy-three of the Settled Land Act, 1925, by that section as applied by section twenty-eight of the Law of Property Act, 1925, in relation to trusts for sale, and by section twenty-six of the Universities and College Estates Act, 1925, shall include the payment under subsection (1) of this section to a local authority in respect of a dwelling of the amount mentioned in that subsection.

**Exchequer
contributions
towards
improvement
grants.**

25.—(1) The Minister may, out of moneys provided by Parliament, make a contribution towards the expense incurred by a local authority in making an improvement grant.

(2) A contribution under the foregoing subsection shall be a sum equal to three-quarters of the annual loan charges referable to the amount of the grant, payable annually for the period of twenty financial years beginning with the year in which were completed the improvement works in respect of expenses incurred for the purposes of the execution of which the grant was made.

(3) For the purposes of this section, the annual loan charges referable to the amount of an improvement grant shall (whatever may be the manner in which the local authority have provided or intend to provide the money requisite for making the grant) be the annual sum that, in the opinion of the Minister, would fall to be provided by the local authority for the payment of interest on, and the repayment of, an amount, equal to the amount of the grant, of borrowed money the period for the repayment of which is twenty years.

(4) Where the Minister has made a contribution under this section towards the expense incurred by a local authority in giving assistance in respect of the provision or improvement of a dwelling, the authority shall pay to the Minister three-quarters of any sum recovered by them by virtue of subsection (2) of section twenty-three of this Act in consequence of a breach of

conditions required to be observed with respect to the dwelling or paid to them under the last foregoing section in respect of the dwelling, and any sum received by the Minister under this subsection shall be paid into the Exchequer.

PART II
—cont.

26.—(1) Subsection (1) of section twenty-three of this Act shall have effect in relation to such a dwelling as is therein mentioned, being the residence house of a see or ecclesiastical benefice, with the substitution, in paragraph (b), for the words “at all times at which it is not occupied by the applicant for the improvement grant or a member of his family or a person to whom the interest of the applicant in the dwelling has been devised by him”, of the words “at all times at which, during the tenure of the see or benefice by the bishop or incumbent, it is not occupied by him”. Special provisions as to parsonages, almshouses, &c.

(2) Paragraph (c) of subsection (3) of section twenty of this Act shall not apply in relation to—

- (a) an application for an improvement grant in respect of the residence house of an ecclesiastical benefice made, during a period when the benefice is void, by a sequestrator of the profits thereof; or
- (b) an application for such a grant in respect of a building held upon trust for use as an almshouse or as the residence of a minister of any religious denomination made by the trustees exercising the powers of management of the trust estate;

and the condition specified in paragraph (b) of subsection (1) of section twenty-three of this Act shall not apply to such a dwelling as is mentioned in that subsection, being a dwelling held upon trust for use as an almshouse or as the residence of a minister of any religious denomination, so long as it is occupied or kept available for occupation as an almshouse or, as the case may be, by a minister of that denomination.

27.—(1) No assistance shall be given under section twenty of this Act in respect of the provision of dwellings by means of the conversion of dwellings with respect to which the conditions specified in subsection (1) of section twenty-three of this Act are for the time being required to be observed. Provisions as to further improvement grants.

(2) Where by virtue of the giving on any occasion of assistance under section twenty of this Act in respect of the improvement of a dwelling the conditions specified in subsection (1) of section twenty-three of this Act fall to be required to be observed with respect to the dwelling before the observance thereof by virtue of the giving of assistance on a previous occasion has ceased to be requisite, the provisions of sections twenty-three and twenty-four

PART II
—cont.

of this Act and of subsection (4) of section twenty-five thereof shall apply in relation to the dwelling as regards each occasion on which assistance is so given as if it were the only occasion on which it were so given:

Provided that in relation to any period during which the said conditions are simultaneously required to be observed by virtue of the giving of assistance on more than one occasion, the condition as to rent applicable by reason of the giving of assistance on the last occasion shall be deemed to be the condition as to rent applicable also by reason of the giving of assistance on any previous occasion.

Provisions as to dwellings improved under Housing (Rural Workers) Act, 1926.

28.—(1) No assistance shall be given under section twenty of this Act in respect of the provision of dwellings by means of the conversion of dwellings in relation to which conditions contained in the Housing (Rural Workers) Acts, 1926 to 1942, for the time being apply.

(2) Where assistance is given under the said section twenty in respect of the improvement of a dwelling in relation to which conditions contained in the Housing (Rural Workers) Acts, 1926 to 1942, apply at the time when assistance is so given, those Acts shall have effect in relation to the dwelling as if the conditions specified in subsection (1) of section twenty-three of this Act were contained in, and applicable by virtue of, subsection (1) of section three of the Housing (Rural Workers) Act, 1926, in lieu of the conditions specified therein and in sections five and six of the Housing (Rural Workers) Amendment Act, 1938, and anything which would, or would not, constitute for the purposes of this Part of this Act a breach of the conditions specified in subsection (1) of the said section twenty-three shall be treated as constituting, or, as the case may be, not constituting a breach of those conditions for the purposes of the Housing (Rural Workers) Acts, 1926 to 1942.

Power to increase in certain cases rent fixed under Part II.

29. If, in the case of a dwelling in respect of the provision or improvement of which assistance has been given under section twenty of this Act, being a dwelling to which works (other than works for the purposes of the execution of which assistance has been so given) have been executed at a time when the conditions specified in subsection (1) of section twenty-three of this Act are required to be observed with respect to the dwelling, an application in that behalf is made to the local authority, they may direct that, for the purposes of this Part of this Act, the maximum amount of the rent payable by the occupier of the dwelling shall be increased by such amount as may be specified in the direction, not exceeding an amount calculated at a rate per annum of eight per cent. of the cost of executing the works; and where

a direction is given under this section in relation to a dwelling on any occasion—

PART II
—cont.

(a) references in paragraphs (b) and (c) of that subsection to the amount which the rent payable by the occupier of the dwelling is not to exceed shall, as respects any period after the giving of the direction and before a subsequent direction is given under this section in relation to the dwelling or the direction is superseded by reason of the application of the said conditions by virtue of the giving of further assistance under the said section twenty (whichever event first occurs), be construed in relation to the dwelling, for the purposes of this Part of this Act and, where subsection (2) of the last foregoing section applies, for the purposes of the Housing (Rural Workers) Acts, 1926 to 1942, as references to that amount as increased in accordance with the direction given on that occasion and with any direction given under this section in relation to the dwelling on a previous occasion which has not been superseded as aforesaid ; and

(b) it shall be the duty of the proper officer of the local authority to record particulars of the direction in the register of local land charges.

30. Where a dwelling in respect of the provision or improvement of which assistance has been given under section twenty of this Act is, at a time when the conditions specified in subsection (1) of section twenty-three of this Act are required to be observed with respect to the dwelling, let to a person in consequence of his employment by the lessor, the operation of section three of the Rent and Mortgage Interest Restrictions (Amendment) Act, 1933 (which restricts the right of a landlord to possession of a dwelling) shall not be excluded by reason of the letting being otherwise than at a rent of two-thirds or more of the rateable value of the dwelling.

Provisions as to security of tenure of tenants.

Arrangements by Local Authorities with Housing Associations and Development Corporations for Improvement of Housing Accommodation

31.—(1) A local authority may, with the approval of the Minister, make arrangements with a housing association or development corporation for—

Arrangements by local authorities with housing associations and development corporations for improvement of housing accommodation.

(a) the provision of dwellings by the association or corporation by means of the conversion of houses or other buildings ;

(b) the improvement of dwellings by the association or corporation.

(2) Arrangements made under this section shall include such terms with regard to such matters, including the rents at which

PART II
—cont.

the dwellings to be provided or improved in accordance with the arrangements are to be let, as may appear to the local authority to be expedient in view of the needs of their district in relation to housing and may be approved by the Minister.

(3) Where arrangements are made under this section by a local authority with a housing association or development corporation, the Minister shall, out of moneys provided by Parliament, make to the local authority a contribution of a sum, payable annually for the period of twenty financial years beginning with the year in which the carrying out of the arrangements is completed, equal to three-quarters of the annual loss determined by the local authority, with the approval of the Minister, to be likely to be incurred by the association or corporation in carrying out the arrangements, and the local authority shall pay to the association or corporation for that period annual grants each of an amount not less than the said sum :

Provided that—

- (a) if the Minister is satisfied that the association or corporation have made default in giving effect to the terms of the arrangements, he may reduce the amount of the contribution payable to the local authority under this subsection, or suspend or discontinue the payment thereof, as he thinks just ; and
- (b) if the Minister reduces, or suspends or discontinues the payment of, the contribution, the local authority may reduce to a proportionate or any less extent the annual grant payable by them to the association or corporation, or may suspend the payment thereof for a corresponding period, or may discontinue the payment thereof, as the case may be.

(4) Subsection (2) of section seventeen of this Act shall have effect in relation to a determination under the last foregoing subsection of the amount of the annual loss likely to be incurred by a housing association or development corporation in carrying out arrangements made under this section as it has effect in relation to a determination of the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals with the substitution, for references to the local authority, of references to the association or corporation, for references to the proposals, of references to the arrangements and, for the reference to the Minister, of a reference to the local authority.

Reduction of Amount of Exchequer Contributions

Reduction of
amount of
exchequer
contributions.

32.—(1) An order under section sixteen of the Act of 1946 (which provides for the periodical review of contributions made under that Act by the Minister), may provide—

- (a) as respects proposals approved by him under section fifteen or nineteen of this Act after such date as may

be specified in the order, for reducing the proportion of the annual loss likely to be incurred by a local authority or development corporation by reference to which the amount of a contribution by him under either of those sections is to be computed ;

- (b) as respects improvement grants made in pursuance of applications approved by local authorities after that date, for reducing the proportion of the annual loan charges referable to the amount of any such grant by reference to which the amount of a contribution by him under section twenty-five of this Act is to be computed ;
- (c) as respects arrangements made after that date under the last foregoing section, for reducing the proportion of the annual loss likely to be incurred by a housing association or development corporation by reference to which the amount of a contribution by him under subsection (3) of that section is to be computed :

Provided that none of the said proportions shall be reduced to less than two-thirds.

(2) Any such order providing for reducing the proportion of the annual loan charges referred to in paragraph (b) of the foregoing subsection shall provide for reducing to a corresponding extent, in relation to improvement grants made as mentioned in that paragraph, the proportion of any sum required by subsection (4) of section twenty-five of this Act to be paid to the Minister.

Supplementary Provisions

33.—(1) The local authority for the purposes of this Part of this Act as respects England and Wales other than the administrative county of London shall be the council of the borough, urban district or rural district. Local authorities for purposes of Part II.

(2) As respects the administrative county of London other than the City of London, both the London County Council and the council of a metropolitan borough shall be local authorities for the purposes of this Part of this Act, and as respects the City of London, the Common Council shall be the local authority for those purposes.

34.—(1) The council of a county may agree with the council of a non-county borough, urban district or rural district within the county for the exercise by the county council of the powers of the borough or district council under sections twenty to twenty-four of this Act. Agreements by county councils for exercise of powers of county district councils.

(2) An agreement made under this section may contain such provisions with regard to the expenses to be incurred by the county council, including the raising of loans to meet those expenses, and such other incidental or consequential provisions as the councils think proper ; and for the purposes of any such

PART II
—cont.

agreement the county council shall be deemed for the purposes of the said sections and of section twenty-five of this Act to be the local authority with whom the agreement is made.

Regulations.

35.—(1) The Minister may by statutory instrument make, with the consent of the Treasury, regulations prescribing anything required or authorised by this Part of this Act to be prescribed.

(2) A statutory instrument made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

**Interpretation
of Part II.**

36.—(1) In this Part of this Act the expression “owner”, in relation to a dwelling, means the person who is for the time being receiving the rackrent of the dwelling or who, if the dwelling were let at a rackrent, would receive the rackrent of the dwelling:

Provided that if in any case the person who, by virtue of the foregoing definition, would be the owner of a dwelling is a person himself liable to pay a rackrent in respect of the dwelling or of any property comprising the dwelling to a superior landlord, that superior landlord and not the person aforesaid shall be deemed to be the owner of the dwelling for the purposes of this Part of this Act.

For the purposes of this subsection, the expression “rackrent” has the same meaning as in the Public Health Act, 1875.

(2) References in this Part of this Act to the improvement of dwellings shall be construed as including references to the alteration or enlargement thereof and to the execution of works of repair thereto not being works of ordinary repair, and as including also references to the execution of works of ordinary repair thereto so far, but so far only, as the execution thereof is incidental to or connected with the execution of works of improvement, alteration or enlargement or of works of repair not being works of ordinary repair, and in this Part of this Act the expression “improved” shall be construed accordingly.

(3) In determining for the purposes of this Part of this Act whether, as regards a dwelling in respect of the provision or improvement of which assistance has been given under section twenty of this Act, a breach has occurred of the condition required by this Part of this Act to be observed with respect to the dwelling as to the keeping of the dwelling available for letting at a rent not exceeding the maximum rent that may be paid by an occupier of the dwelling or of the condition so required to be observed as to the rent payable by an occupier of the dwelling, any property which, in the absence of express provision, would pass upon a conveyance of the legal estate in fee simple in the dwelling, and any yard, garden, out-house and appurtenances usually enjoyed with the dwelling, shall be deemed to form part of the dwelling.

PART III

EXCHEQUER CONTRIBUTIONS FOR NEW HOUSES AND HOSTELS
AND GRANTS FOR BUILDING EXPERIMENTS*Alteration of Amounts of Contributions under the Housing
(Financial and Miscellaneous) Provisions Act, 1946*

37.—(1) Where—

- (a) a flat provided in a block of flats on a site the cost of which as developed (ascertained in accordance with Part I of the First Schedule to the Act of 1946) exceeds one thousand five hundred pounds per acre is approved for the purposes of that Act by the Minister after the commencement of this Act or has been approved for those purposes by him during the period beginning with the twenty-eighth day of February, nineteen hundred and forty-nine, and ending with the commencement of this Act; and
- (b) the number of flats contained in the block and in any other block of flats on the site, in relation to the area of the site, exceeds a rate of forty to the acre or falls short of a rate of thirty to the acre;

Amendment
as to standard
amount of
exchequer
contribution
for flats on
expensive sites.

then, if the Minister thinks fit so to direct, the standard amount of the annual exchequer contribution for the flat for the purposes of the Act of 1946 and the normal amount of the annual rate fund contribution for the flat for those purposes, instead of being amounts determined in accordance with sections four and five of that Act, shall, subject to the provisions of this Part of this Act, respectively be the amounts which they would be determined under those sections to be if the cost of the site were an amount bearing to the cost thereof as developed (ascertained in accordance with Part I of the First Schedule to the Act of 1946) the same proportion that thirty-five bears to the rate to the acre of the number of flats mentioned in paragraph (b) of this subsection in relation to the area of the site or, if the last-mentioned amount is less than one thousand five hundred pounds, the amounts which they would be so determined to be if the cost of the site were more than one thousand five hundred pounds but not more than four thousand pounds.

(2) In this section the expression "block of flats" means a building which is a block of flats for the purposes of the Housing (Financial Provisions) Act, 1938.

38.—(1) If, in the case of a house other than a flat in a block of flats, being a house approved for the purposes of the Act of 1946 by the Minister on or after the twenty-eighth day of February, nineteen hundred and forty-nine, and provided on a site the cost of which as developed (ascertained in accordance with Part I of the First Schedule to the Act of 1946) exceeds

Amendment
as to standard
amount of
exchequer
contribution
for houses on
expensive sites.

PART III
—cont.

three thousand pounds per acre, the Minister thinks fit so to direct,—

- (a) the standard amount of the annual exchequer contribution for the house for the purposes of the Act of 1946 shall, subject to the provisions of the next following section, be the standard amount of the annual exchequer contribution for the house as ascertained in accordance with the provisions of the Act of 1946 plus one pound and four shillings for each thousand pounds or part of a thousand pounds by which the cost of the site as developed (ascertained as aforesaid) exceeds three thousand pounds per acre, any amount of the excess over ten thousand pounds being disregarded; and
- (b) the normal amount of the annual rate fund contribution for the house for the purposes of the Act of 1946 shall, subject as aforesaid, be the normal amount of the annual rate fund contribution for the house as ascertained in accordance with the provisions of the Act of 1946 plus one-third of the sum by which the standard amount of the annual exchequer contribution is increased under this section:

Provided that, where the house is provided under a scheme of development which makes provision also for the erection of one or more blocks of flats on the same site as the house, paragraph (a) of this subsection shall have effect with the omission of so much thereof as directs disregard of any amount by which the cost of the site exceeds ten thousand pounds.

(2) No contribution shall be payable by the Minister under subsection (2) of section four of the Act of 1946 (which relates to houses provided on a site the cost of which, as developed, exceeds one thousand five hundred pounds per acre, being houses provided under a scheme of development which makes provision also for the erection of one or more blocks of flats on that site), for a house other than one approved for the purposes of that Act by the Minister before the twenty-eighth day of February, nineteen hundred and forty-nine.

(3) In this section the expression “block of flats” means a building which is a block of flats for the purposes of the Housing (Financial Provisions) Act, 1938.

Increased standard amount of exchequer contribution for houses constructed to preserve character of surroundings.

39.—(1) Where the Minister is satisfied, on an application made to him by a local authority with respect to a house which the local authority have provided or intend to provide, that the cost of providing the house has been or will be substantially enhanced by expenses attributable to measures taken with his consent by the authority in the construction of the house (whether by the use of stone or other

special material or otherwise howsoever) in order to preserve the character of the surroundings, then, if the house is or becomes one in respect of which an annual exchequer contribution is payable under the Act of 1946 and the Minister thinks fit to direct—

PART III
—cont.

- (a) the standard amount of that contribution for the house for the purposes of the Act of 1946 shall be the standard amount of the annual exchequer contribution for the house as ascertained in accordance with that Act and the foregoing provisions of this Part of this Act plus such sum not exceeding five pounds as the Minister may determine ; and
- (b) the normal amount of the annual rate fund contribution for the house for the purposes of the Act of 1946 shall be the normal amount of the annual rate fund contribution for the house, as so ascertained, plus one half of the sum by which the standard amount of the annual exchequer contribution for the house is increased under this section.

(2) This section shall not apply to a house completed before the commencement of this Act.

Exchequer Contributions for Hostels and Grants for Building Experiments

40.—(1) In respect of a new building provided, or a building converted, by a local authority or development corporation for use as a hostel, being a building approved for the purposes of this subsection by the Minister, the Minister shall (subject to the provisions of subsection (3) of this section) make to the authority or corporation, out of moneys provided by Parliament, a contribution—

Exchequer
contributions
for hostels.

- (a) payable annually for such number of financial years, not exceeding sixty, as he may determine, being years beginning with the year in which the building is, or, as the case may be, the works of conversion are, completed ;
- (b) of such amount, not exceeding the sum produced by multiplying five pounds by the number of bedrooms contained in the building, as he may determine having regard to the standard of construction and amenity of the building.

(2) Subject to the provisions of this and the two next following subsections, the like contribution, if any, shall be payable out of moneys provided by Parliament in respect of a building which, under arrangements made under section ninety-four of the principal Act by a local authority with a housing association or development corporation, has been provided or converted by

PART III
—cont.

that association or corporation for use as a hostel as would be payable if the building had been provided or converted by the local authority for such use, and shall be paid by the Minister to the authority, who shall pay to the association or corporation by way of annual grant an amount not less than the contribution:

Provided that—

- (a) if the Minister is satisfied that the association or corporation have made default in giving effect to the terms of the arrangements, he may reduce the amount of the contribution payable to the local authority under this subsection, or suspend or discontinue the payment thereof, as he thinks just; and
- (b) if the Minister reduces, or suspends or discontinues the payment of, the contribution, the local authority may reduce to a proportionate or any less extent the annual grant payable by them to the association or corporation, or may suspend the payment thereof for a corresponding period, or may discontinue the payment thereof, as the case may be.

(3) Where, in pursuance of an agreement or order made under the New Towns Act, 1946, a building provided or converted by a development corporation for use as a hostel, being a building in respect of which a contribution is for the time being payable under subsection (1) or (2) of this section, is transferred to a local authority, then—

- (a) no further sums shall, after the time of the transfer, be payable under the said subsection (1) or the said subsection (2), as the case may be; but
- (b) the Minister may, if he thinks fit, pay to the authority, out of moneys provided by Parliament, sums not exceeding any sums which would, after that time, have become payable by him under the said subsection (1) or the said subsection (2), as the case may be, in respect of the building if all conditions precedent to the payment of the sums had been fulfilled.

(4) Where a building which, under arrangements made by a local authority under section ninety-four of the principal Act, has been provided or converted by a housing association for use as a hostel becomes vested in the local authority, and at the time of the vesting the building is one in respect of which a contribution is payable under subsection (2) of this section, then—

- (a) no further sums shall, after the time of the vesting, be payable under that subsection; but
- (b) the Minister may, if he thinks fit, pay to the authority, out of moneys provided by Parliament, sums not exceeding any sums which would, after that time, have

become payable by him under that subsection in respect of the building if all conditions precedent to the payment of the sums had been fulfilled.

PART III
—cont.

(5) A building approved for the purposes of subsection (1) of this section shall not be included amongst the buildings an account of the income and expenditure of a local authority in respect whereof the authority are required by section one hundred and twenty-eight of the principal Act to keep:

Provided that if at any time the Minister is satisfied that the building has ceased to be used as a hostel he may direct that it shall be so included.

(6) This section shall not apply to a new building completed or a building converted before the commencement of this Act or to any premises provided for the purposes of Part III of the National Assistance Act, 1948, by a local authority.

(7) In this section the expression "hostel" means a building wherein is provided, for persons generally or for any class or classes of persons, residential accommodation (otherwise than in separate and self-contained sets of premises) and board, and the expression "local authority" means an authority which is a local authority for the purposes of Part V of the principal Act.

41.—(1) Where—

(a) the Minister is satisfied on an application made to him by a local authority or development corporation with respect to a house which they have provided that the cost of providing the house has been substantially enhanced by reason of either or both of the following matters, namely,—

Exchequer
grants
for building
experiments.

(i) that, with his consent, the house has been constructed in whole or in part by an experimental method;

(ii) that, with his consent, materials have, for the purposes of experiment, been used in the construction of the house or equipment or fittings have, for those purposes, been installed in the house in the course of the construction thereof; or

(b) with the consent of the Minister expense is incurred by a local authority or development corporation in incorporating or installing in a house, otherwise than in the course of the construction thereof, materials, equipment or fittings for the purposes of experiment;

then, subject to such conditions (if any) as the Treasury may determine, the Minister may make to the authority or corporation, out of moneys provided by Parliament, a grant of such amount and payable in such manner as he may determine.

PART III
—cont.

(2) In this section the expression "local authority" means an authority which is a local authority for the purposes of Part V of the principal Act.

*Effect on certain Contributions of a House vesting
in a Local Authority*

Effect on
certain
contributions
of a house
vesting in a
local
authority.

42.—(1) Where a house which has, with the assistance of a local authority given under section two of the Housing, &c., Act, 1923, or section twenty-nine of the Housing Act, 1930, been provided by some person other than a local authority becomes vested in the local authority after the commencement of this Act, then, if at the time of the vesting the house is a house in respect of which a contribution is payable by the Minister under section one of the said Act of 1923 or subsection (3) of the said section twenty-nine, as the case may be, the Minister may continue to make payments by way of that contribution as if the house had been provided by the local authority.

(2) Where a house which has, with the assistance of the Minister given under section three of the Housing, &c., Act, 1923, been provided by a society, body of trustees or company to which that section applies becomes vested in a local authority after the commencement of this Act, then, if at the time of the vesting the house is a house in respect of which a contribution is payable by the Minister under that section, the Minister may pay to the authority any contribution which would have fallen to be paid thereunder to the society, body of trustees or company if the house had not become vested in the local authority and if all conditions precedent to the making of that contribution had been fulfilled.

(3) Section nine of the Housing (Financial Provisions) Act, 1938, shall have effect only in the case of houses which became vested in a local authority before the commencement of this Act.

PART IV

MISCELLANEOUS AMENDMENTS OF LAW

Amendment
and extension
of s. 7 of the
Building
Materials and
Housing Act,
1945.

43.—(1) Subsection (1) of section seven of the Building Materials and Housing Act, 1945 (which, in the case of a house constructed under the authority of a building licence granted subject to a condition limiting the price for which the house may be sold or the rent at which it may be let, imposes a penalty on a person who, during the period of four years beginning with the passing of that Act, sells or offers to sell the house for a greater price than the price limited by the condition or lets or offers to let the house at a rent in excess of the rent so limited), shall have effect with the substitution, for

the reference to that period, of a reference to the period of eight years beginning with the passing of that Act.

PART IV
—cont.

(2) The said subsection (1) shall apply in the case of a sale of, or an offer to sell, a house in course of construction under the authority of a building licence granted as mentioned in that subsection as it applies to a sale of, or an offer to sell, a house constructed under the authority of a building licence so granted, and the remaining provisions of the said section seven and subsections (3) and (4) of section nine of the said Act of 1945 shall have effect accordingly.

(3) The said subsection (1) shall apply in the case of a sale of, or an offer to sell, a building of any kind converted, or in course of conversion, into a house or houses under the authority of a building licence granted as mentioned in that subsection and in the case of a letting of, or an offer to let, a house provided by means of the conversion of a building of any kind under the authority of a building licence so granted, as it applies to a sale of, or an offer to sell, or, as the case may be, a letting of, or an offer to let, a house constructed under the authority of a building licence so granted, and the remaining provisions of the said section seven and subsections (3) and (4) of section nine of the said Act of 1945 shall, with any requisite modifications, have effect accordingly.

(4) For the purposes of the said section seven and of this section, where a building licence in respect of the carrying out of some, but not all, of the work requisite for constructing a house or for converting a building of any kind into a house or houses is granted as mentioned in the said subsection (1), then, notwithstanding that fact, the construction of the house or the conversion of the building shall be deemed to take place, or to have taken place, as the case may be, under the authority of the licence.

(5) If, in the case of a house to which the said section seven applies, being a house to which works have been executed after the construction or provision thereof, an application in that behalf is made to the local authority (as defined by section eight of the said Act of 1945) in the area of which the house is situated, the local authority may direct that, for the purposes of the said section seven, the price for which the house may be sold and the rent at which it may be let shall be increased by such amounts respectively as may be specified in the direction; and where a direction is given under this subsection in relation to a house on any occasion—

- (a) references in the said section seven to the price for which the house may be sold and to the rent at which it may be let (other than the first of such references)

PART IV
—cont.

shall, as respects any period after the giving of the direction and before a subsequent direction is given under this subsection in relation to the house, be construed in relation to the house as references to that price and to that rent as respectively increased in accordance with the direction given on that occasion and with any direction given under this subsection in relation to the house on a previous occasion; and

- (b) it shall be the duty of the proper officer of the local authority to record particulars of the direction in the register of local land charges.

(6) Proceedings in respect of an offence alleged to have been committed against the said section seven in respect of a house or building may be taken before any justices of the peace having jurisdiction in the area in which the house or building is situate.

(7) In its application to Northern Ireland this section shall have effect—

- (a) with the substitution, in subsection (5) thereof, for references to the local authority in the area of which a house is situated, of references to the Ministry of Finance for Northern Ireland;
- (b) with the omission of paragraph (b) of that subsection; and
- (c) with the substitution, in the last foregoing subsection, for the words “any justices of the peace having jurisdiction in the area”, of the words “a court of summary jurisdiction constituted in accordance with the provisions of the Summary Jurisdiction and Criminal Justice Act (Northern Ireland), 1935, sitting in and for the petty sessions district”;

and for the purposes of section six of the Government of Ireland Act, 1920 (which relates to the power of the Parliament of Northern Ireland to make laws), this section shall be deemed to be a provision of an Act passed before the day appointed for the purposes of that section.

Amendments
of the Small
Dwellings
Acquisition
Acts, 1899 to
1923.

44.—(1) The limit fixed by subsection (1) of section one of the Small Dwellings Acquisition Act, 1899, on the market value of a house in respect of which an advance may be made under the Small Dwellings Acquisition Acts, 1899 to 1923, shall, in relation to an advance made after the commencement of this Act, be increased from one thousand five hundred pounds to five thousand pounds.

(2) Paragraph (e) of section twenty-two of the Housing, &c., Act, 1923 (which provides that where an advance is made under the Small Dwellings Acquisition Act, 1899, in respect of a house

in course of construction, the advance may be made by instalments as the building of the house progresses, so that the total advance does not at any time before the completion of the house exceed fifty per cent. of the value of the work done up to that time), shall have effect with the substitution, for the reference to fifty per cent., of a reference to eighty per cent.

PART IV
—cont.

45. If, in the case of a dwelling in respect of which assistance has been given under the Housing (Rural Workers) Act, 1926, by way of grant, being a dwelling to which works (other than works in respect of which assistance has been given under that Act by way of grant, or under section twenty of this Act) have been executed at a time when conditions contained in the Housing (Rural Workers) Acts, 1926 to 1942, apply in relation to the dwelling, an application in that behalf is made to the local authority by whom the grant was made, they may direct that, for the purposes of those Acts, the maximum amount of the rent payable by the occupier in respect of the dwelling shall be increased by such amount as may be specified in the direction, not exceeding an amount calculated at a rate per annum of eight per cent. of the cost of executing the works; and where a direction is given under this section in relation to a dwelling on any occasion—

Power to increase in certain cases rent fixed under the Housing (Rural Workers) Acts 1926 to 1942.

- (a) the reference in that one of the following provisions which is applicable to the dwelling, namely, paragraph (b) of subsection (1) of section three of the Housing (Rural Workers) Act, 1926, and section six of the Housing (Rural Workers) Amendment Act, 1938, to the amount which the rent payable by the occupier in respect of the dwelling is not to exceed shall, as respects any period after the giving of the direction and before a subsequent direction is given under this section in relation to the dwelling, be construed in relation to the dwelling as a reference to that amount as increased in accordance with the direction given on that occasion and with any direction given under this section in relation to the dwelling on a previous occasion; and
- (b) it shall be the duty of the proper officer of the local authority to record particulars of the direction in the register of local land charges.

46.—(1) Section thirty-seven of the Water Act, 1945 (which empowers an owner of land who proposes to erect thereon buildings for which a supply of water for domestic purposes will be needed to require any statutory water undertakers within whose limits of supply that land is situated to construct any necessary service reservoirs and to lay any necessary mains and bring water to the land) shall be amended in accordance with the following provisions of this section.

Amendment of s. 37 of the Water Act, 1945.

PART IV
—cont.

(2) In subsection (1)—

- (a) for the words “to lay any necessary mains and to bring water thereto”, there shall be substituted the words “to construct any necessary service reservoirs, to lay the necessary mains to such point or points as will enable the buildings to be connected thereto at a reasonable cost and to bring water to that point or those points”;
- (b) for the words “providing and laying the necessary mains” there shall be substituted the words “constructing the necessary service reservoirs and providing and laying the necessary mains”; and
- (c) for the words “laying and providing the mains” there shall be substituted the words “constructing the service reservoirs and providing and laying the mains”.

(3) For subsection (3) there shall be substituted the following subsections:—

“(3) Any question arising under subsection (1) of this section as to the point or points to which mains must be taken in order to enable buildings to be connected thereto at a reasonable cost shall, in default of agreement, be determined by the Minister.

(4) If the undertakers, after receipt of a requisition under subsection (1) of this section and after tender to them of any undertaking or deposit which they may require in accordance with that subsection, do not before the expiration of three months (or, where a question has, before that time, been referred to the Minister under the last foregoing subsection, before the expiration of three months from the date when the Minister notifies the undertakers of his decision, if that period expires later) comply with the requisition, they shall, unless they show that the failure was due to unavoidable accident or other unavoidable cause, be guilty of an offence against this Act”.

PART V

GENERAL

Power of local
authorities
to borrow.

47.—(1) A local authority or a county council may borrow for the purposes of this Act, and sections one hundred and nineteen, one hundred and twenty-two, one hundred and twenty-three and one hundred and twenty-four of the principal Act (which respectively relate to the manner of borrowing by the London County Council and the Common Council of the City

of London, the issue of housing bonds, the making of loans by the Public Works Loan Commissioners and the lending by county councils of money to local authorities within their area) shall have effect as if references to the purposes of that Act included references to the purposes of this Act, as if references to section ninety-one of that Act included references to section four and to section five of this Act and as if, in the case of money borrowed by the London County Council or the Common Council of the City of London for the purposes of this Act, it were borrowed under that Act.

(2) The repeal by this Act of sections ninety and ninety-one of the principal Act shall not affect the power of a local authority or county council to borrow for the purpose of an advance made or undertaking given under either of those sections or the power of the Public Works Loan Commissioners to lend money to a local authority or county council for any such purpose.

48. The provisions of the principal Act specified in Part I of the Second Schedule to this Act shall have effect subject to the adaptations specified in that Part of that Schedule, and the provisions of the Act of 1946 specified in Part II of that Schedule shall have effect subject to the adaptations specified in that Part of that Schedule.

Adaptations of
principal Act
and Act of
1946.

49.—(1) There shall be defrayed out of moneys provided by Parliament—

- (a) any increase in the sums payable under section one hundred and seventy-three of the principal Act or Part I of the Local Government Act, 1948, out of moneys so provided which is attributable to the passing of this Act; and
- (b) any increase in the sums payable under section ninety-four of the principal Act or under the Act of 1946 out of moneys so provided which is attributable to the removal from the principal Act of references to the working-classes.

(2) Any expenses incurred under this Act by the Common Council of the City of London shall be defrayed out of the general rate authorised to be levied by the Council.

50.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

s Interpretation.

“the Act of 1946” means the Housing (Financial and Miscellaneous Provisions) Act, 1946;

PART V
—cont.

“development corporation” means a corporation established by an order under section two of the New Towns Act, 1946, of the Minister of Town and Country Planning;

“house” includes any part of a building, being a part which is occupied or intended to be occupied as a separate dwelling, and, in particular, includes a flat;

“housing association” has the same meaning as in the principal Act;

“the Minister” means the Minister of Health;

“the principal Act” means the Housing Act, 1936.

(2) References in this Act to any other enactment shall, unless the context otherwise requires, be construed as references to that enactment as amended by any subsequent enactment, including this Act.

Short title,
citation, extent
and repeal.

51.—(1) This Act may be cited as the Housing Act, 1949, and the Housing Acts, 1936 to 1946, and this Act may be cited together as the Housing Acts, 1936 to 1949.

(2) This Act shall not extend to Scotland and, except as regards section forty-three thereof, this Act shall not extend to Northern Ireland.

(3) The Minister shall have power, exercisable by statutory instrument, to make an order directing that this Act shall, subject to such exceptions, adaptations and modifications as may be specified in the order, extend to the Isles of Scilly, but except as so extended this Act shall not extend to the said Isles.

The power conferred by this subsection to make an order shall be construed as including a power exercisable in the like manner to vary or revoke the order.

(4) The following Acts are hereby repealed to the following extent,—

(a) the principal Act, to the extent specified in Part I of the Third Schedule to this Act;

(b) the Acts mentioned in the first and second columns of Part II of that Schedule, to the extent specified in the third column of that Part of that Schedule.

SCHEDULES

FIRST SCHEDULE

Section 1.

AMENDMENTS OF THE HOUSING ACT, 1936, FOR PURPOSES OF
REMOVAL OF REFERENCES TO THE WORKING CLASSES

<i>Provision amended and subject matter thereof</i>	<i>Amendment</i>
Section nine ... (Power of local authority to require repair of insanitary house).	In subsection (1), the words "which is occupied, or is of a type suitable for occupation, by persons of the working classes" shall be omitted.
Section eleven ... (Power of local authority to order demolition of insanitary house).	In subsection (1), the words "which is occupied, or is of a type suitable for occupation, by persons of the working classes" shall be omitted.
Section twelve ... (Power to make a closing order as to part of a building).	In subsection (1), for the words "which is occupied, or is of a type suitable for occupation, by persons of the working classes", there shall be substituted the words "which is used, or is suitable for use, as a dwelling".
Section twenty-five ... (Power to declare an area to be a clearance area).	In paragraph (i) of the proviso to subsection (1), and in subsection (2), the words "of the working classes" shall be omitted.
Section twenty-eight ... (Provisions with respect to property belonging to a local authority within, surrounded by or adjoining, a clearance area).	In the proviso, the word "working-men's" shall be omitted.
Section forty-five ... (Obligations of local authority with respect to re-housing).	In subsection (1), the words "of the working classes" shall be omitted.
Section fifty-one ... (Certificates as to the condition of houses).	In subsection (1), the words "which is occupied, or of a type suitable for occupation, by persons of the working classes and" shall be omitted.
Section seventy-one ... (Duty of local authorities to review housing conditions and to frame proposals).	The words "for the working classes", in both places where they occur, shall be omitted.

1st SCH.
—cont.

*Provision amended
and subject matter
thereof*

Amendment

- Section seventy-two ... (Mode of provision of housing accommodation). In subsection (1), the words "for the working classes", in both places where they occur, shall be omitted, and in paragraph (c), the words "suitable for the purpose" shall be omitted, and in subsection (3), for the words "the enactments relating to the housing of the working classes", there shall be substituted the words "the enactments relating to housing".
- Section seventy-three ... (Power of local authority to acquire land for provision of housing accommodation). In paragraph (a), the words "for the working classes" shall be omitted, for paragraph (b) there shall be substituted the following paragraph:—
 "(b) to acquire—
 (i) houses ;
 (ii) buildings other than houses, being buildings which may be made suitable as houses ;
 together with any lands occupied with the houses or buildings, or any estate or interest in houses or in such buildings as are mentioned in sub-paragraph (ii) of this paragraph;"
 and in paragraph (c), in sub-paragraph (i), the words "for the working classes" shall be omitted, and in sub-paragraph (ii), the words "for, or for the convenience of, persons belonging to the working classes and other persons" shall be omitted.
- Section seventy-nine ... (Powers of dealing with land acquired or appropriated for provision of housing accommodation). In subsection (1), in paragraph (b), for the words "that person will erect and maintain thereon such number of houses suitable for the working classes as may be fixed by the authority in accordance with plans approved by them", there shall be substituted the words "that person will erect thereon in accordance with plans approved by the local authority, and maintain, such number of houses of such types as may be specified by the authority", and the words "for, or for the convenience of, persons belonging to the working classes and other persons" shall be omitted, and in paragraph (d), the words "either in regard to the maintenance of the houses as houses for the working classes or otherwise" shall be omitted, and for

*Provision amended
and subject matter
thereof*

Amendment

1ST SCH.
—cont.

Section seventy-nine ...
(Powers of dealing
with land acquired or
appropriated for pro-
vision of housing ac-
commodation).—*cont.*

subsection (4) there shall be substituted
the following subsection :—

“(4) Where a local authority ac-
quire a building which may be made
suitable as a house, or an estate or
interest in such a building, they shall
forthwith proceed to secure that the
building is so made suitable either by
themselves executing any necessary
work or by leasing it or selling it to
some person subject to conditions for
securing that he will so make it
suitable”.

Section eighty-five ...
(Conditions to be ob-
served in management
of local authority's
houses).

For subsection (5) there shall be substi-
tuted the following subsection:—

“(5) The authority may grant to
any tenant such rebates from rent,
subject to such terms and conditions,
as they may think fit”.

Section eighty-seven ...
(Power to establish
Housing Management
Commission).

In subsection (1), for the words “working-
class houses and other buildings or land
provided in connection with such houses”,
there shall be substituted the words
“houses and other buildings or land
provided in connection therewith”.

Section eighty-eight ...
(Duty of county coun-
cil in respect of housing
conditions in rural
districts).

In subsection (1), for the words “the
housing conditions of persons of the
working classes”, there shall be sub-
stituted the words “housing conditions
in the district”.

Section ninety-two ...
(Loans by Public
Works Loan Commis-
sioners to companies,
&c.).

In subsection (1), the words “for the
working classes”, in the first place where
they occur, shall be omitted and for the
words “which may be made suitable as
houses for the working classes” there
shall be substituted the words “which
the association desire to purchase with
a view to the improvement thereof”; in
subsection (2), for the words “or any
other company, society, or association”
there shall be substituted the words “or
any company, society or association (not
being a housing association)”; in sub-
section (3), the words “(being houses
which have been constructed or made
suitable for the working classes by the
company, association, society, or person
receiving the loan)” shall be omitted;
and in the proviso to subsection (5) and
in subsection (8) the words “for the
working classes” shall be omitted.

1ST SCH.
—cont.*Provision amended
and subject matter
thereof**Amendment*

Section ninety-three ...
(Power of local authorities and county councils to promote and assist housing associations).

In subsection (2), the words "for the working classes" shall be omitted.

Section ninety-four ...
(Power of local authorities to make arrangements with housing associations).

For subsection (1) there shall be substituted the following subsection :—

"(1) A local authority may, with the approval of the Minister, make arrangements with a housing association for the purpose of enabling the association to provide housing accommodation or to alter, enlarge, repair or improve houses or buildings which, or an estate or interest in which, the local authority have acquired with a view to the provision or improvement of housing accommodation",

and in subsection (2), for the words "the housing of the working classes", there shall be substituted the word "housing".

Section one hundred and twenty-eight.
(Obligation to keep Housing Revenue Account).

In paragraph (d), the word "working-class" shall be omitted.

Section one hundred and twenty-nine.
(Credits and debits in Housing Revenue Account).

In subsection (1), in paragraph (i), the words "for the working classes" shall be omitted.

Section one hundred and thirty-seven.
(Re-housing obligations of undertakers).

The words "for persons of the working classes" shall be omitted.

Section one hundred and fifty-six.
(Recovery of possession of controlled houses).

In subsection (1), in paragraph (a), and in subsection (2), for the words "any enactment relating to the housing of the working classes" there shall be substituted the words "any enactment relating to housing".

Section one hundred and sixty-two.
(Power of court to authorise execution of works on unfit premises or for improvement).

In subsection (1), the words "for the working classes" shall be omitted.

<i>Provision amended and subject matter thereof</i>	<i>Amendment</i>	<i>1ST SCH. —cont.</i>
Section one hundred and eighty-eight. (Interpretation).	In subsection (1), in the definition of "Housing association", the words "for the working classes" shall be omitted, and in subsection (4), the words "or of the general standard of housing accommodation for working classes in the district" shall be omitted.	
Eleventh Schedule ... (Re-housing by undertakers).	In paragraph 1, the word "working-men's" and the words "belonging to the working class" shall be omitted, and for the words from "For the purposes of this schedule" to the words "by whom any houses are occupied," there shall be substituted the words "For the purpose of determining, for the purposes of this Schedule, the number of persons by whom any dwellings are occupied,". In paragraph 2, the words "of the working class", in each place where they occur, and the word "working-men's" shall be omitted. In paragraph 4, the words "for persons of the working class" shall be omitted, and for the words "provisions requiring a certain standard of house to be erected", there shall be substituted the words "provisions with respect to the standards of the houses that are to be erected". In paragraph 6, the word "working-men's" shall be omitted. In paragraph 8, the word "working-men's" shall be omitted. In paragraph 11, sub-paragraph (e) shall be omitted.	

SECOND SCHEDULE

Section 48.

ADAPTATIONS OF THE HOUSING ACT, 1936, AND THE HOUSING (FINANCIAL AND MISCELLANEOUS PROVISIONS ACT), 1946

PART I

ADAPTATIONS OF THE HOUSING ACT, 1936

1. In the principal Act the expression "the Housing Acts" shall, unless the context otherwise requires, be construed as including this Act.

2. For the purposes of the principal Act the expression "Exchequer contribution" shall include any sum payable under section fifteen or forty-two of this Act by the Minister to a local authority.

3. Section eighty-six of the principal Act (which relates to the power of the Minister to impose conditions on the sale of houses by a local

2ND SCH.
—cont.

authority) shall have effect as if the reference to the contributions referred to in the Eighth Schedule to that Act included a reference to contributions payable under section eighteen of this Act.

4. Subsection (2) of section eighty-nine of the principal Act (which relates to agreements by county councils for assisting rural district councils in providing housing accommodation) shall have effect as if the reference to section one hundred and five of that Act included a reference to sections fifteen to seventeen and forty of this Act.

5. Section one hundred and twenty-eight of the principal Act (which provides for the keeping of Housing Revenue Accounts) shall have effect as if dwellings provided or improved by a local authority in accordance with approved improvement proposals were included amongst the houses and dwellings an account of the income and expenditure of the authority in respect whereof the authority are required by that section to keep, and references in section one hundred and twenty-nine of that Act (which relates to credits and debits in Housing Revenue Accounts) to such houses, buildings, land or dwellings as are mentioned in the said section one hundred and twenty-eight shall be construed accordingly.

6. Subsection (1) of section one hundred and twenty-nine of the principal Act and subsection (2) of section one hundred and thirty thereof (which relates to the disposal of balances in the Housing Revenue account) shall have effect as if any reference to the contributions referred to in the Eighth Schedule to that Act included a reference to contributions payable under section eighteen of this Act.

7. Section one hundred and fifty-three of the principal Act (which provides, in the case of a county council other than the London County Council, for reference to the public health and housing committee of the council of matters relating to the exercise and performance by the council of their powers and duties under that Act and for the delegation of their powers to that committee) shall have effect as if the references to that Act included references to this Act.

8. Subsection (1) of section one hundred and sixty-nine of the principal Act (which relates to the transfer of the powers of rural district councils to county councils) shall have effect as if references to that Act included references to this Act, and subsection (3) of that section shall have effect as if the reference to Part V of that Act included a reference to this Act and as if the reference to section one hundred and five of that Act included a reference to sections fifteen to seventeen and forty of this Act.

9. Section one hundred and seventy-one of the principal Act and subsection (1) of section one hundred and seventy-two thereof (which contain provisions for remedying defaults by local authorities other than rural district councils in the exercise of their powers) shall have effect as if references to that Act included references to this Act, and subsection (2) of the said section one hundred and seventy-two shall have effect as if the reference to Part V of that Act included a reference to this Act and as if the reference to section one hundred and five of that Act included a reference to sections fifteen to seventeen and forty of this Act.

10. Section one hundred and eighty-four of the principal Act (which empowers the Common Council of the City of London to

appoint a committee for any of the purposes of that Act) shall have effect as if the reference to that Act included a reference to this Act.

2ND SCH.
—cont.

11. Subsection (4) of section one hundred and eighty-eight of the principal Act (which specifies matters to which regard is to be had in determining for the purposes of that Act whether a house is fit for human habitation) shall have effect as if the reference to that Act included a reference to this Act.

PART II

ADAPTATIONS OF THE HOUSING (FINANCIAL AND MISCELLANEOUS PROVISIONS) ACT, 1946

12. Subsection (2) of section one of the Act of 1946 (which provides that, subject to the provisions of that Act, the amount of each annual exchequer contribution payable for a house shall be that one of the standard amounts thereafter mentioned which is appropriate to the house) shall have effect as if the standard amounts of the annual exchequer contribution applicable to houses by virtue of sections thirty-seven to thirty-nine of this Act were so mentioned.

13. Subsection (3) of section four of the Act of 1946 (which provides for the determination by the Minister of any question as to what constitutes a separate site for the purposes of that section) shall have effect as if the reference therein to that section included a reference to sections thirty-seven and thirty-eight of this Act.

14. Subsection (2) of section five of the Act of 1946 (which provides that, subject to the provisions of that Act, the amount of each annual rate fund contribution payable in respect of a house shall be that one of the normal amounts thereafter mentioned which is appropriate to the house in respect of which the contribution is payable) shall have effect as if the normal amounts of the annual rate fund contribution applicable to houses by virtue of sections thirty-seven to thirty-nine of this Act were so mentioned.

15. Section six of the Act of 1946 (which provides for an increased standard amount of the annual exchequer contribution and an increased normal amount of the annual rate fund contribution in the case of a house the cost of the provision of which has been or will be substantially enhanced by expenses attributable to the acquisition of rights of support) shall have effect as if references therein to the preceding provisions of that Act included references to section thirty-seven of this Act.

16. Subsection (1) of section eight of the Act of 1946 (which provides that, where annual exchequer contributions of the special standard amount, or of that amount as increased in accordance with any of the provisions of sections six and seven of that Act, are payable in respect of a house to the council of a county district, the council of the county in which the district is situated shall pay to the council of the district, for each of the sixty years following the completion of the house, an annual contribution of one pound ten shillings) shall have effect as if, for the reference to that amount as so increased, there were substituted a reference to that amount as increased either in accordance with any of the said provisions or in accordance with any of those provisions and with any of the provisions of sections thirty-seven to thirty-nine of this Act.

Section 51.

THIRD SCHEDULE

ENACTMENTS REPEALED

PART I

REPEALS IN THE HOUSING ACT, 1936

(26 Geo. 5 & 1 Edw. 8. c. 51)

In section nine, in subsection (1), the words "which is occupied, or is of a type suitable for occupation, by persons of the working classes".

In section eleven, in subsection (1), the words "which is occupied, or is of a type suitable for occupation, by persons of the working classes".

In section twenty-five, in subsection (1), in paragraph (i) of the proviso, the words "of the working classes", and in subsection (2), the words "of the working classes".

In section twenty-eight, in the proviso, the word "working-men's".

In section forty-five, in subsection (1), the words "of the working classes".

In section fifty-one, in subsection (1), the words "which is occupied, or of a type suitable for occupation, by persons of the working classes and".

In the heading of Part V, the words "FOR THE WORKING CLASSES".

In section seventy-one, the words "for the working classes" in both places where they occur.

In section seventy-two, in subsection (1), the words "for the working classes" in both places where they occur, and in paragraph (c) the words "suitable for the purpose".

In section seventy-three, in paragraph (a), the words "for the working classes," and in paragraph (c), in sub-paragraph (i), the words "for the working classes" and, in sub-paragraph (ii), the words "for or for the convenience of, persons belonging to the working classes and other persons".

In section seventy-nine, in subsection (1), in paragraph (b), the words "for, or for the convenience of, persons belonging to the working classes and other persons", and in paragraph (d) the words "either in regard to the maintenance of the houses as houses for the working classes or otherwise".

Section ninety.

Section ninety-one, except as respects undertakings thereunder given before the commencement of this Act.

In section ninety-two, in subsection (1), the words "for the working classes", in the first place where they occur, in subsection (3), the words "(being houses which have been constructed or made suitable for the working classes by the company, association, society, or person receiving the loan)," in subsection (5), in the proviso, the words "for the working classes," and in subsection (8), the words "for the working classes".

In section ninety-three, in subsection (2), the words "for the working classes".

In section one hundred and three, in subsection (2), the words "and for the purposes of section ninety-one of this Act".

Section one hundred and ten, except as respects undertakings thereunder given before the commencement of this Act.

3RD SCH.
—cont.

In section one hundred and seventeen, subsection (2).

In section one hundred and eighteen, in paragraph (c), the words "paragraph (c) of subsection (1) of section ninety-one".

In section one hundred and twenty, in subsection (1), the words "(other than the purposes of paragraph (c) of subsection (1) of section ninety-one of this Act)".

In section one hundred and twenty-eight, in paragraph (d), the word "working-class".

In section one hundred and twenty-nine, in subsection (1), in paragraph (i), the words "for the working classes".

Section one hundred and thirty-six.

In section one hundred and thirty-seven, the words "for persons of the working classes".

In section one hundred and sixty-two, in subsection (1), the words "for the working classes".

In section one hundred and eighty-eight, in subsection (1), in the definition of "Housing association", the words "for the working classes", and in subsection (4) the words "or of the general standard of housing accommodation for working classes in the district".

In the Eleventh Schedule, in the heading, the words "IN CASE OF DISPLACEMENT OF PERSONS OF THE WORKING CLASSES", in paragraph 1, the word "working-men's" and the words "belonging to the working class", in paragraph 2, the words "of the working class", in each place where they occur, and the word "working-men's", in paragraph 4, the words "for persons of the working class", in paragraphs 6 and 8 the word "working-men's" and, in paragraph 11, sub-paragraph (e).

PART II

GENERAL REPEALS

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 6. c. 16.	The Housing (Financial Provisions) Act, 1938.	In section two, in subsection (3), the words from the beginning to the words "displaced persons; and". Section eight.
7 & 8 Geo. 6. c. 36.	The Housing (Temporary Accommodation) Act, 1944.	In section four, subsection (3).
9 & 10 Geo. 6. c. 20.	The Building Materials and Housing Act, 1945.	In section six, subsection (2).
11 & 12 Geo. 6. c. 22.	The Water Act, 1948...	In section fourteen, subsection (4).

Table of Statutes Referred to in this Act

Short Title	Session and Chapter
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Public Health Act, 1875 ...	38 & 39 Vict. c. 55.
Small Dwellings Acquisition Act, 1899 ...	62 & 63 Vict. c. 44.
Housing of the Working Classes Act, 1890 ...	53 & 54 Vict. c. 70.
Government of Ireland Act, 1920 ...	10 & 11 Geo. 5. c. 67.
Housing, &c. Act, 1923 ...	13 & 14 Geo. 5. c. 24.
Settled Land Act, 1925 ...	15 & 16 Geo. 5. c. 18.
Law of Property Act, 1925 ...	15 & 16 Geo. 5. c. 20.
Land Charges Act, 1925 ...	15 & 16 Geo. 5. c. 22.
Universities and College Estates Act, 1925 ...	15 & 16 Geo. 5. c. 24.
Housing (Rural Workers) Act, 1926 ...	16 & 17 Geo. 5. c. 56.
Housing Act, 1930 ...	20 & 21 Geo. 5. c. 39.
Rent and Mortgage Interest Restrictions (Amendment) Act, 1933 ...	23 & 24 Geo. 5. c. 32.
Housing Act, 1936 ...	26 Geo. 5 & 1 Edw. 8. c. 51.
Housing (Financial Provisions) Act, 1938 ...	1 & 2 Geo. 6. c. 16.
Housing (Rural Workers) Amendment Act, 1938 ...	1 & 2 Geo. 6. c. 35.
Hire Purchase Act, 1938 ...	1 & 2 Geo. 6. c. 53.
Building Societies Act, 1939 ...	2 & 3 Geo. 6. c. 55.
Water Act, 1945 ...	8 & 9 Geo. 6. c. 42.
Building Materials and Housing Act, 1945 ...	9 & 10 Geo. 6. c. 20.
Housing (Financial and Miscellaneous Provi- sions) Act, 1946 ...	9 & 10 Geo. 6. c. 48.
New Towns Act, 1946 ...	9 & 10 Geo. 6. c. 68.
Town and Country Planning Act, 1947 ...	10 & 11 Geo. 6. c. 51.
Local Government Act, 1948 ...	11 & 12 Geo. 6. c. 26.
National Assistance Act, 1948 ...	11 & 12 Geo. 6. c. 29.

CHAPTER 61

Housing (Scotland) Act, 1949

ARRANGEMENT OF SECTIONS

PART I

EXTENSION OF PROVISIONS AS TO HOUSING OF WORKING CLASSES TO HOUSING OF ALL MEMBERS OF THE COMMUNITY

Section.

1. Deletion of references to the working classes in certain provisions of the Housing (Scotland) Acts, 1925 to 1946.

PART II

FINANCIAL ASSISTANCE TOWARDS IMPROVEMENT OF HOUSING ACCOMMODATION

Exchequer Contributions for Improvement of Housing Accommodation by Local Authorities

2. Exchequer contributions towards losses incurred by local authorities in improving housing accommodation.
3. Nature, and amounts, of contributions.
4. Determination of annual loss.
5. Local authorities' contributions.
6. Consequential adaptations of Housing (Scotland) Acts, 1925 to 1946.
7. Duty of local authority to submit particulars of properties to be included in improvement proposals.